

Ashish Pal v. State of U.P. and others

Allahabad High Court · Division Bench · 22 July 2026 · Writ-C No. 20742 of 2026 · **Petition disposed of; connection to be granted on Clause 4.4 indemnity.**

HEADNOTE

An occupant whose co-occupant has surrendered the existing supply, and who is ready to furnish an indemnity bond, may obtain a new connection under Clause 4.4 of the U.P. Electricity Supply Code, 2005 without registered title or landlord's consent. The Court directed the petitioner to file the Clause 4.4 indemnity form (Annexure-4.2) within two weeks and the licensee, on receipt, to consider and grant the connection in accordance with law within four weeks. Title under the rival Will remains for the civil court.

FACTUAL SUMMARY

The petitioner applied for a new electricity connection at premises he occupied with his brother. The brother had surrendered the existing connection, claimed title under a Will, and sued; the civil court had ordered status quo. The petitioner said both had lived there before the testator's death and he could remain until an eviction decree. He offered an indemnity bond. Counsel for the DISCOM did not dispute the status-quo order or the petitioner's occupancy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

occupant connection on indemnity bond

HOLDING

Clause 4.4 of Chapter 4 of the U.P. Electricity Supply Code, 2005 permits a new connection to a person who lacks standard ownership proofs, or who seeks supply as a tenant without the landlord's consent, on the indemnity form in Annexure-4.2. Where a status-quo order is operating and the occupant offers that indemnity, the licensee shall, on receipt of the form, consider and grant the connection in accordance with law. The petitioner was given two weeks to furnish the form; the authority four further weeks to grant supply.

¶ 5-6

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond An occupant whose co-occupant has surrendered the existing supply, and who is ready to furnish an indemnity bond, may obtain a new connection under Clause 4.4 of the U.P. Electricity Supply Code, 2005 without registered title or landlord's consent.. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — TITLE AND EVICTION

The brother's Will-based title claim and whether the petitioner must vacate were left to the pending civil suit; the Court proceeded only on occupancy, the status-quo order, and Clause 4.4. ¶ 3, 5-6